



May 19, 2026

Via Hand Delivery

Chris Rice
California High-Speed Rail Authority
770 L Street, Suite 620
Sacramento, CA 95814

Re: RFP No. HSR25-89 – Track and Systems Construction Contract
CHSP’s Response to the Authority’s May 14, 2026 Response to Protest

Dear Mr. Rice,

California High Speed Partners (“CHSP”) writes in response to the California High-Speed Rail Authority’s (“Authority”) Response to Protest dated May 14, 2026 (the “Response”). For the reasons set forth below, CHSP respectfully submits that the Response does not address the central issue presented and instead rests on a fundamental mischaracterization of CHSP’s position.

I. THE AUTHORITY MISCHARACTERIZES CHSP’S POSITION

At the outset, CHSP is not requesting that the Authority waive any licensing requirement. Rather, CHSP maintained that it will provide a California-licensed Professional Engineer in compliance with the requirements of RFP No. HSR25-89 (“RFP”) and proposes to do so prior to contract execution through a permissible update to its staffing.

The Response proceeds from the incorrect premise that CHSP seeks relief from a mandatory requirement. It does not. CHSP accepts and will fully satisfy the requirement that the Design Oversight Manager will be a California-licensed Professional Engineer at the time of contract execution as required by the RFP. This distinction – between waiver of a requirement and substitution of personnel to achieve compliance – is central. The Response does not meaningfully engage with that distinction.

II. THE RFP REQUIRES LICENSURE AT CONTRACT EXECUTION – NOT AT PROPOSAL SUBMISSION

The RFP expressly provides that where the Work requires a professional license, “at least one Key Personnel in responsible charge of the Work . . . shall be a California registered Professional Engineer in good standing *by the date of Contract execution.*” ([Emphasis added] Instructions to



Proposers (“ITP”) § 6.6.2(e), RFP No. HSR25-89 (Nov. 26, 2025, as amended).) The Response similarly cites to the RFP requirement that the “Design Oversight Manager be a California registered Professional Engineer *by the date of contract execution* (ITP Section 6.6.2(f)(4)).” ([Emphasis added], Response p. 2.)

The timing of the requirement is therefore explicit: compliance is required by the date of contract execution, not at the time of proposal submission.

CHSP does not dispute, and will fully comply with, that requirement. The Authority’s position effectively rewrites the RFP to require licensure at the time of proposal submission, a requirement that does not appear in the solicitation and is inconsistent with its express terms.

III. THE RFP EXPRESSLY PERMITS UPDATES TO KEY PERSONNEL

The RFP further confirms that staffing is not fixed at proposal submission. To the contrary, it provides that “[t]he staffing for the Contract resulting from this RFP may be updated and approved as required by the Contract or as requested by the Authority.” (ITP 6.6.2.(d) at 56, RFP No. HSR25-89.) CHSP’s approach is entirely consistent with this provision. CHSP proposes to update its Key Personnel, subject to the Authority’s approval, to ensure that a properly licensed California Professional Engineer is in place to fulfill the role of Design Oversight Manager prior to contract execution.

The Response does not address, reconcile, or otherwise account for this express provision. When read together, the RFP’s timing requirement and its allowance for staffing updates foreclose the conclusion that the identity of the licensed Professional Engineer must be fixed at the time of proposal submission. Because contract execution occurs in the future, there are legitimate reasons for bidders to substitute listed personnel between the time of submission and time of execution, which is precisely why the ITP contemplates such updates. Failure to allow a legitimate substitution, when it is allowable under the terms of the ITP, is not consistent with a competitive bidding process as it effectively reduces the number of bidders to one.

Further, allowing such a substitution does not mean that CHSP wins the pursuit, rather it merely allows for the scoring of both proposals and prices to be evaluated as contemplated by the ITP and provides the Authority with the potential best value for this work instead of being obligated to just one bidder, which is not in the Authority’s interest.



IV. NO MATERIAL DEVIATION EXISTS

The Authority concludes that CHSP's proposal reflects a "material deviation" rendering it nonresponsive. That conclusion is not supported by governing procurement principles. Also, of note, the Key Personnel component of the scoring is less than 4% of the total scoring which emphasized the lack of materiality here.

A deviation is material only where it affects price, confers a competitive advantage, or otherwise frustrates the purpose of competitive bidding. (*Ghilotti Constr. Co. v. City of Richmond* (1996) 45 Cal. App. 4th 897, 906–07.) None of those conditions is present here. The public policy favoring strict compliance with bidding requirements does not preclude the contracting entity from waiving inconsequential deviation. (*MCM Constr., Inc. v. City & Cnty. of San Francisco*, 66 Cal. App. 4th 359 (1998) 369–70.)

CHSP's proposal does not fall within any category of material deviation identified in *Ghilotti*. It does not affect price, because CHSP remains fully bound to provide a California-licensed Professional Engineer in responsible charge at contract execution as required by the RFP. (ITP § 6.6.2(e).) It does not confer any competitive advantage, as all proposers are subject to the same requirement and CHSP proposes only to satisfy that requirement through a staffing update expressly permitted by the ITP. (ITP 6.6.2.(d) at 56.) And it does not frustrate the purpose of competitive bidding, which is to ensure fair competition on equal terms, not to exclude an otherwise compliant proposer based on a correctable issue that does not alter the substance of its proposal.

The Authority's conclusion rests on conflating (1) a waiver of a mandatory requirement with (2) a substitution of personnel to ensure compliance. Because CHSP seeks only the latter, no material deviation exists. The Authority's decision to ignore CHSP's substitution request frustrates the purposed of competitive bidding because it eliminates, before any scoring or knowledge of pricing, the only other bidder for this Project. CHSP is asking for the bidding process to be completed and that the Authority allow for a competitive bidding process rather than only scoring one bidder. Considering only one bidder frustrates the whole point of the competitive bidding process.

V. THE AUTHORITY'S DETERMINATION DISREGARDS THE PROCUREMENT FRAMEWORK

The Authority's own clarification process further underscores that this issue was not inherently disqualifying. The Authority sought clarification regarding the status of CHSP's proposed personnel, and CHSP responded transparently. (See generally the Authority's April 16, 2026



Request for Clarification.) That exchange reflects that the matter was subject to clarification and resolution, rather than constituting an incurable defect.

Instead, the Authority treated a correctable, non-price, non-technical issue as dispositive, without addressing the RFP provisions permitting staffing updates or the express timing of the licensure requirement. Competitive bidding principles are intended to ensure that proposals are evaluated on their substantive merits and that immaterial or correctable issues do not exclude otherwise qualified proposers. (*Ghilotti*, 45 Cal. App. 4th at 906–07.)

Excluding CHSP on this basis – while leaving only a single proposal for evaluation – is inconsistent with that framework and does not advance the objective of obtaining best value for the State.

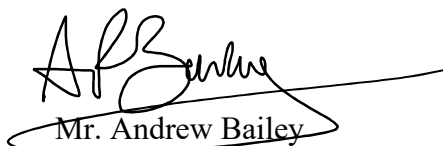
VI. CONCLUSION

For the foregoing reasons, CHSP respectfully requests that the Authority reconsider its determination and permit CHSP's proposal to proceed to evaluation. CHSP remains prepared to confirm its proposed staffing updates and demonstrate full compliance with all applicable requirements in advance of contract execution.

Finally, representatives of Colas Rail Inc. and RailWorks, will attend the Authority's June 1 Board meeting and will be available to provide comment and respond to any questions the Board may have.

We appreciate the Authority's consideration and remain available to discuss further at your convenience.

Sincerely,



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Bid Director

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